

Calendar Lines 1-2

Case Name: *Hall v. Cepheid, et al.*

Case No.: 23CV424954

This is a representative action under the Private Attorneys General Act (“PAGA”). Plaintiff Darryl Hall alleges defendant Cepheid committed various wage and hour violations.

Before the Court is Plaintiff’s motion for leave to file a fourth amended complaint (“4AC”), and to sever his claims, which is opposed. As discussed below, the Court GRANTS Plaintiff’s motion for leave to amend, in part and DENIES it in part; the Court GRANTS Plaintiff’s motion to sever his individual FEHA claims from class and PAGA claims for trial purposes.

I. BACKGROUND

According to the allegations of the operative third amended complaint (“TAC”), Plaintiff worked for Defendant as a non-exempt employee from approximately 2021 to 2023. (TAC, ¶ 1.) Defendant failed to: provide compliant meal periods or compensation in lieu thereof; provide compliant rest breaks or compensation in lieu thereof; pay overtime wages; pay minimum wages; timely pay wages during employment; furnish accurate itemized wage statements; maintain required records; and indemnify employees for necessary expenditures. Plaintiff also asserts individual claims for violation of the Fair Employment and Housing Act (“FEHA”) and wrongful termination.

Based on the foregoing, Plaintiff initiated this action on October 26, 2023, with the filing of the Complaint which asserted the following claims: (1) failure to pay minimum wages; (2) failure to pay overtime wages; (3) failure to provide meal periods or premium pay in lieu thereof; (4) failure to provide rest periods or premium pay in lieu thereof; (5) failure to reimburse necessary business expenses; (6) failure to provide and maintain accurate records; (7) failure to pay wages when due; (8) PAGA penalties; (9) violation of California’s Unfair Competition Law; (10) discrimination in violation of FEHA; (11) harassment in violation of FEHA; (12) failure to prevent discrimination and harassment in violation of FEHA; and (13) wrongful termination in violation of public policy.¹ On March 15, 2024, he filed his first amended complaint (“FAC”), which asserted the same claims and on October 28, 2024, the Court (Hon. Adams) issued its order, which overruled the demurrer to the FAC, in part, and sustained, in part, with leave to amend. On November 13, 2024, Plaintiff filed the second amended complaint, and on December 16, 2024, he filed the operative third amended complaint (“TAC”), which asserts the same causes of action.

II. REQUEST FOR JUDICIAL NOTICE

Defendant requests judicial notice of the following items:

- (1) The court’s order in *Land Value Holdings v. City of Duarte*, Los Angeles County Superior Court, which denied leave to amend, dated October 20, 2021: Exhibit A;
- (2) The court’s order in *Citibank v. Polny*, Orange County Superior Court, which denied leave to amend, dated November 18, 2013: Exhibit B; and

¹ Causes of action ten through thirteen are asserted on an individual basis.

- (3) The court's order in *SLPR v. San Diego Unified Port Dist.*, San Diego Superior Court, which denied leave to amend: Exhibit C.

Evidence Code section 452, subdivision (d), permits judicial notice of court records. However, Defendant seeks judicial notice of the truth of the contents, which is improper. (See *Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81 [truth of contents of court records cannot be judicially noticed].)

Thus, Defendant's request for judicial notice is DENIED.

III. MOTION FOR LEAVE TO AMEND

Plaintiff moves for leave to file his 4AC.

A. Legal Standard

Code of Civil Procedure sections 473, subdivision (a), and 576 provide that the court "may, in the furtherance of justice," allow a party to amend any pleading. "It is well established that 'California courts have "a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." Indeed, "it is a rare case in which 'a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case.' " Thus, absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail." (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163 [internal citations omitted].)

"Leave to amend a complaint is thus entrusted to the sound discretion of the trial court. . . ." (*Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242 [internal citations omitted].) "[I]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048, (*Kittredge*)). The court does not abuse its discretion by denying leave to amend where the facts stated do not constitute a cause of action. (See *IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 654 (*IIG Wireless*)).

A motion to amend filed before trial must (1) include a copy of the proposed amended pleading, (2) state what allegations in the previous pleading are proposed to be deleted, and (3) state what allegations are proposed to be added to the previous pleading. (Cal. Rules of Ct., rule 3.1324(a).) The motion must also include a separate declaration that explains "(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." (Cal. Rules of Ct., rule 3.1324(b).)

B. Discussion

As an initial matter, Defendant argues that Plaintiff's motion is procedurally defective because it fails to comply with California Rule of Court 3.1324(b), which requires, a declaration specifying (1) the effect of the amendment; (2) why the amendment is necessary; (3) when the

facts giving rise to the amendment were discovered; and (4) the reasons why the request was not made earlier.

In support of the motion, Plaintiff submitted the declaration of Plaintiff's counsel Aren Park ("Park Decl."). Park states that Plaintiff moved diligently to amend the complaint to include Proposed Class Representatives upon discovering that they had important, supportive testimony and upon their agreement to serve as class representatives. (Park Decl., ¶ 3.) The proposed amended complaint is made in good faith, solely for the purpose of protect Class Member' claims and bringing the case through class certification. (*Ibid.*) The declaration is deficient in that it does not state any facts regarding why amendment is necessary, when the facts giving rise to the amendment were discovered and why the request was not made earlier. (See Cal. Rules of Ct., (See Cal. Rules of Ct., 3.1324(b)(2)-(4).) Nevertheless, the motion itself states that the parties agreed to stay formal discovery after the filing of the TAC on December 16, 2024, and to pursue resolution of the action through mediation. (Motion, p. 2:18-19.) The parties agreed the Defendant would produce informal discovery for the mediation. (Motion, p. 2:19-22.) On May 4, 2026, the parties attended the mediation, which did not result in a settlement. (Motion, p. 24-25.) Subsequently, the parties agreed to provide all outstanding discovery requests. (Motion, pp. 2:27-3:1.) Plaintiff has since identified Timonthy Daniels ("Daniels") and Sandra Love ("Love") (collectively, "Proposed Class Representatives") as additional suitable class representatives. (Motion, p. 3:3-5.) Thus, Plaintiff's counsel is admonished for failing to comply with the procedural requirements and warned that failure to do so in the future may result in a different outcome. The Court will now turn to the substance of the motion. (See *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806 [courts have a policy favoring disposition of cases on the merits rather than on procedural grounds].)

Plaintiff argues that the Proposed Class Representatives will adequately represent the class because they are members of the putative Class, possess the same interests as the Class, and suffered the same injuries as the Class. (Motion, p. 5:17-19.) Plaintiff further argues that Defendant will not be prejudiced by the addition of Proposed Class Representatives. (Motion, p. 5:1-7.) In opposition, Defendant argues that Plaintiff's motion should be denied due to his undue delay. (Opp., p. 6:20-21.) Love filed her separate action in 2024 and Plaintiff had notice of her Complaint and did not move to add her as an addition Class representative until two years later. (Opp., p. 7:10-20.)

Love filed her separate class action in April 2024, and the parties formally stayed discovery in December 2024 after Plaintiff Hall filed his TAC until after the mediation in May 2026. Thus, the Court is not persuaded that there was undue delay in Plaintiff bringing his request for leave to amend.

Next, Defendant argues that the motion should be denied because it will suffer severe prejudice if Plaintiff is permitted to amend his pleading. (Opp., p. 8:13-15.) It contends that its discovery in this matter has been limited to the Sunnyvale location (where Plaintiff Hall worked) and it has not interviewed or collected evidence from the locations where Daniels or Love worked and many of their supervisors are no longer employed by Defendant, which hinders its ability to collect information and documents for its defense. (Opp., p. 8:15-23.)

"Leave to amend a complaint is thus entrusted to the sound discretion of the trial court." (*Branick, supra*, 39 Cal.4th at p. 242.) "[I]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (*Kittredge, supra*,

213 Cal.App.3d at p. 1048.) Prejudice exists where the amendment would require delaying the trial, result in the loss of critical evidence, add costs of preparation, or increase the burden of discovery, etc. (See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488; see also *Melican v. Regents of the Univ. of Calif.* (2007) 151 Cal.App.4th 168, 176.)

Here, the proposed class is defined as “[a]ll person who worked at least one 3.5 hour shift as a non-exempt employee in the State of California from the period of four years prior to the filing of the Action and the date of trial.” (TAC, ¶ 14; Proposed 4AC, ¶ 16.) Daniels was a manufacturing associate from May 2020 to July 2022 as a non-exempt, hourly employee. (Motion, p. 5:8-10.) He was subject to the same alleged failures to provide compliant meal and rest periods, and wage statements. (Motion, p. 5:10-12.) Similarly, Love was employed as a manufacturing associate from May 2022 to March 2024 as a non-exempt, hourly employee and similarly she was subject to the alleged failures by Defendant. (Motion, p. 5:12-16.) As Proposed Class Representatives are already class members, it does not appear that the additional discovery will be so burdensome as to prejudice Defendant. A trial date has not yet been set for this matter. The parties are still setting the schedule for a class certification motion. Thus, it does not appear to the Court that Defendant will be prejudiced by the addition of Proposed Class Representative.

With regard to Daniels, Defendant argues that adding him as a class representative is futile because his PAGA claim is time-barred. (Motion, p. 10:14-16.) Plaintiff fails to provide any argument in opposition to this point.

The statute of limitations for a PAGA claim is one year. (See Code Civ. Proc., § 340, subd. (a); see also *Brown v. Ralphs Grocery Co.* (2018) 28 Cal.App.824, 839.) “[L]eave to amend may be denied where permitting an amendment would be futile [citation], e.g., where the amendment does not state a cause of action. [Citations.]” (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 828; see *Heckendorn v. City of San Marino* (1986) 42 Cal.3d 481, 489 [leave to amend should be denied where no liability exists under substantive law].)

Daniels’ last day of employment was on July 1, 2022. (Declaration of Angela Rodenburg, ¶ 5.) Defendant contends he did not file a timely PAGA claim with the LWDA. However, there are no facts or evidence before the Court at this time regarding Daniel’s notice to the LWDA or lack thereof. Thus, the Court cannot conclude at this time and amendment would be futile and therefore, the motion cannot be denied on this basis.

As to Plaintiff Love, Defendant argues amendment is futile because she has another action pending in another court and thus, it will be successful on a demurrer against her. However, the Proposed 4AC has not yet been filed, thus, the Court will not address demurrer-specific arguments on this motion. Moreover, it appears Plaintiff Love’s case has been stayed since 2024. Thus, the Court cannot conclude at this time that her addition to this action would be futile. Consequently, the motion cannot be denied on this basis.

Lastly, Defendant contends that Plaintiff asserts the following two new theories of liability: (1) Defendant’s failure to incorporate non-discretionary bonuses into the regular rate of pay calculation for overtime, meal periods premiums, and rest premiums; and (2) Defendant’s failure to pay sick leave by failing to include incentive pay in the regular rate of pay calculation—which expand the scope of the case and would require substantial new discovery. (Opp., p. 9:3-12.)

Generally new legal theories may be added if they relate to the same general set of facts. (See *Kittredge, supra*, 213 Cal.App.3d at p. 1048, quoting *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 489.)

The TAC, within the second cause of action for failure to pay overtime wages, alleges “Plaintiff and Class Members who work more than eight hours in a day or more than forty hours in a workweek are to be paid at the rate of time and one-half (1 ½) for all hours worked in excess of eight hours in a day or more than forty hours in a workweek. An employee’s regular rate of pay including remuneration for employee paid to, or on behalf of, the employee including commissions, non-discretionary bonuses, and incentive pay.” (TAC, ¶ 31.) Thus, this theory is not entirely new and the Court will permit Plaintiff leave to assert this theory.

On the other hand, the failure to pay sick leave is asserted for the first time under the PAGA claim (the eighth cause of action) in the proposed 4AC. (See Proposed 4AC, ¶ 76, fn. 4.) Moreover, Plaintiff does not provide any facts as to how or when facts were discovered to support the sick leave claim nor does he identify the facts to support it. Furthermore, Labor Code section 246 is not included in Plaintiff’s notice to the LWDA, nor does Plaintiff state whether an amended notice was sent. Therefore, to the extent, Plaintiff seeks to assert a violation of Labor Code section 246, it is denied. (See *IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 654 [The court does not abuse its discretion by denying leave to amend where the facts stated do not constitute a cause of action.])

Thus, the Court will permit Plaintiff to file a 4AC, which adds Proposed Class Representatives to this action and asserts the failure to include non-discretionary bonuses theory but not the sick leave theory.

Accordingly, Plaintiff’s motion is GRANTED, in part and DENIED, in part.

IV. MOTION TO SEVER PLAINTIFF’S INDIVIDUAL FEHA CLAIMS

Plaintiff moves to sever his individual FEHA claims from the class and representative claims and proceed with them separately. Defendant argues that Plaintiff’s notice fails to comply with the notice requirements. (Opp., p. 12:7-12.) The Court agrees.

Code of Civil Procedure section 1010 states that a notice of motion must indicate “the grounds upon which [the motion] will be made, and the papers, if any, upon which it will be based.” California Rules of Court, rule 3.1110(a) states that “[a] notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order.”

Plaintiff’s notice of motion provides “[Plaintiff] will apply to the Court for leave to amend the Third Amended Complaint to add additional class representative plaintiffs. No other substantive amendment is contemplated by this motion. Pursuant to Sections 473(a)(1) and 576 of the California Code of Civil Procedure, just cause exists to add [Daniels] and [Love] as Class Representatives, as the proposed amendment would not make substantive changes to the definition of the class or the class claims or delay trial in any way; instead it would add additional class representatives to represent the Class for certification of trial.” (Motion, p. 1:5-11.) The footer states “notice of motion and motion for leave to amend complaint,” however, the caption provides “Plaintiff’s notice of motion and motion for leave to amend complaint to

add additional class representatives and sever claims.” Plaintiff’s notice of motion does not comply with Code of Civil Procedure section 1010 and California Rule of Court, rule 3.1110(a) to the extent Plaintiff seeks severance. Plaintiff’s counsel is again admonished for failing to comply with procedural requirements and is ordered to ensure that they comply with them going forward as future failure to comply may be met with a different result. Nevertheless, the notice of motion and motion are contained in one single document, thus, Defendant was adequately apprised of the argument and provided a substantive response to it.

Plaintiff cites Code of Civil Procedure section 1048 as the basis of the request.

Code of Civil procedure 1048, provides,

- (a) When actions involving a common question of law or fact are pending before the court, it may order a joint trial of any or all the matters in issue in the action; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.
- (b) The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.

(Code Civ. Proc., § 1048.)

Plaintiff argues his FEHA claims are distinct in nature from the class wage-and-hour claims. (Motion, pp. 7:22-8:3.) Plaintiff further argues that severing the FEHA claims would not impose delay or prejudice to Defendant. (Motion, p. 8:4-5.) While Plaintiff could have been clearer about the relief sought with this request, it appears that Plaintiff seeks bifurcation of his individual FEHA claims within this action for trial purposes.

The objection of bifurcation is to avoid wasting time and money on the trial. (See e.g., *Horton v. Jones* (1972) 26 Cal.App.3d 952, 954.) In determining whether bifurcation is appropriate, courts often look to other facts aside from whether the case presents separate issues. For example, courts will consider the complexity of the issue, the risk of jury confusion, judicial economy, and whether the claims present separate and independent issues. (See *Downey Sav. & Loan Ass’n v. Ohio Cas. Ins. Co.* (1987) 189 Cal.App.3d 1072, 1086.) “Granting or denying a motion for separate trials lies within the trial court’s sound direction and is subject to reversal on appeal only for clear abuse.” (*Grappo v. Coventry Financial Corp.* (1991) 235 Cal.App.3d 496, 504.)

The claims under FEHA are legally distinct from violations of the Labor Code and they require different supporting evidence, and different questions of fact—therefore, having the claims heard together may result in jury confusion. Moreover, Plaintiff contends that he has provided formal discovery as to his individual claims, including documents regarding his allegations of racial discrimination, harassment, and efforts to obtain medical accommodations. (See Motion, p. 8:5-8.) Thus, the Court is persuaded that bifurcation of Plaintiff Hall’s individual FEHA claims for trial purposes would further the interest of judicial economy

because would allow finder of fact to focus on the distinct issues of law and fact or each group of claims (i.e, class/PAGA claims and FEHA claims). Accordingly,, Plaintiff's request to sever his individual FEHA claims from the class and PAGA claims for trial purposes is GRANTED.

V. CONCLUSION

Plaintiff's motion for leave to amend is GRANTED, IN PART and DENIED, in part; his motion to sever his individual FEHA claims from class and PAGA claims for trial purposes is GRANTED. Plaintiff shall make the necessary changes and file the 4AC within 10 days of this order.

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Calendar Lines 3-4

Case Name: *Mizerski v. HCSG West LLC, et al.*

Case No.: 23CV428171

This is a representative action under the Private Attorneys General Act. Plaintiff Patrick Mizerski alleges that defendant HCSG West LLC and Healthcare Services Group, Inc. committed various wage and hour violations.

Before the Court is (1) Plaintiff's motion to compel further responses to requests for production ("RFP") Set three and sanctions; and (2) Plaintiff's motion to compel further responses to special interrogatories (SROG") Set two and sanctions, which are both opposed.

As discussed below, Plaintiff's motion to compel further responses to his RFPs is GRANTED, in part and MOOT, in part; Plaintiff's motion to compel further responses as to his SROGs is DENIED, in part and MOOT, in part. The parties' respective requests for sanctions are DENIED.

VI. BACKGROUND

According to the allegations of the operative Complaint, Defendant failed to: pay wages for all hours worked; pay overtime wages; provide compliant meal periods or compensation in lieu thereof; provide rest periods or compensation in lieu thereof; maintain accurate pay payroll records; pay sick wages; and reimburse for necessary business expenses.

Based on the foregoing, Plaintiff initiated this action on December 27, 2023, with the filing of the Complaint, which asserts one cause of action for civil penalties under PAGA.

VII. MOTION TO COMPEL FURTHER RESPONSES TO RFP, SET THREE

Plaintiff moves to compel further responses to RFP, Set Three Nos. 32 (work schedule), 33 (Aggrieved Employees' time records), 36 (training policies/procedures), 37 (training materials), 42 (Aggrieved Employees' payroll records), and 43 (Aggrieved Employees' wage statement records). (Motion, p. 2: 1-7.) He further moves for monetary sanctions in the amount of \$6,150.

C. Legal Standard

A party propounding a request for production may move for an order compelling a further response if it deems that a statement of compliance is incomplete, a representation of inability to comply is inadequate, or an objection is without merit. (Code Civ. Proc., § 2031.310, subd. (a).) The motion must set forth "specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98 (*Kirkland*).) Good cause is established simply by a fact-specific showing of relevance. (*Id.* at 98.) If good cause is shown, the burden shifts to the responding party to justify any objections. (*Ibid.*)

D. Meet and Confer